



Wexford County

EXECUTIVE COMMITTEE

Gary Taylor, Chair

NOTICE OF MEETING

The Executive Committee of the Wexford County Board of Commissioners will hold a regular meeting on Tuesday, July 13, 2021, beginning at 4:00 p.m. in the Historic Courthouse, 437 E. Division, Third Floor Commissioners' Room, Cadillac, Michigan.

PUBLIC PARTICIPATION

The meeting can be attended in person or by any one of the following three ways:

- **By Telephone:** Dial toll free 1-646-876-9923, enter Webinar ID 749 610 4141#
- **By Computer:** Go to the Zoom Web Site (zoom.us). Click on "Join a Meeting." Join using Meeting ID 749 610 4141.
- **By Smartphone:** Install the Zoom application prior to the call. Launch the Zoom app at the time of the call and join using Meeting ID 749 610 4141.

TENTATIVE AGENDA

- A. CALL TO ORDER
- B. ROLL CALL
- C. ADDITIONS / DELETIONS TO THE AGENDA
- D. APPROVAL OF THE AGENDA
- E. APPROVAL OF THE JUNE 8, 2021 REGULAR MEETING MINUTES..... 1
- F. PUBLIC COMMENTS
The Committee welcomes all public input.
- G. AGENDA ITEMS
 - 1. Discussion on Current Litigation Matters
 - 2. DPW Issues/Concerns
 - a. Infrastructure Alternatives Monthly Report 15
 - 3. ARPA Funds 16
- H. CORRESPONDENCE
 - 1. EGLE - Landfill PCF, Solid Waste Annual Report 19
- I. ADMINISTRATOR'S COMMENTS
- J. PUBLIC COMMENTS
- K. COMMITTEE COMMENTS
- L. CHAIR COMMENTS
- M. ADJOURN

COUNTY OF WEXFORD
EXECUTIVE COMMITTEE MEETING
MEETING MINUTES
June 8, 2021

The meeting was called to order by Chairman Taylor at 4:00 p.m., in the Commissioners' Room of the Courthouse, third floor, 437 E. Division, Cadillac, Michigan, 49601.

Members Present: Gary Taylor, Chair; Mike Bengelink, Joe Hurlburt, Mike Musta

Members Absent: None

Also Present: Adam Kerr, Maintenance Director; Janet Koch, County Administrator;
Tom Lutte, Infrastructure Alternatives Inc.; Kristi Nottingham, Treasurer;
Alaina Nyman, Clerk; Norma Schmidt, Senior Executive Assistant;
Members of the public

ADDITIONS OR DELETIONS TO THE AGENDA

Added: G.7. Old Jail Property Contingency Offer

APPROVAL OF THE AGENDA

A motion was made by Musta and supported by Bengelink to approve the agenda, as amended. A vote was called. Motion passed unanimously.

APPROVAL OF THE MINUTES

A motion was made by Bengelink and supported by Hurlburt to approve the May 11, 2021, Regular Meeting Minutes. A vote was called. Motion passed unanimously.

PUBLIC COMMENTS

None.

AGENDA ITEMS

G.1. Discussion on Current Litigation Matters

Ms. Janet Koch reported on the following:

Foreclosures

- *Maynard* case – In MI Court of Appeals, no action expected until summer.
- *Delaney #1* – 28th Circuit Court, a motion seeking summary disposition has been filed. A June 28 hearing is scheduled.
- *Delaney #2* - 28th Circuit Court, has been dismissed.
- *Calkins, Grainger and Randolph Cases* – Stays have been issued and no action is expected until fall.

Opioid Litigation: No new information.

Discrimination Complaint: Still no communication from the State.

Comm. Hurlburt inquired about which properties are, if any, federal case and which are state cases. Ms. Koch noted that the Calkins and Grainger cases are in federal court. The rest are state cases.

G.2. a. Cedar Creek Water System

Infrastructure Alternatives Inc. (IAI) Monthly O&M Report for May 2021. Mr. Tom Lutte reported the following:

- A flushing notice and the annual Consumers Confidence Report were mailed to all consumers on May 5.
- The spring flushing was performed on May 18 & 19. One customer called with low water pressure. No issues were located, and the pressure returned to normal once the flushing was complete.

G.3. Lake Street Parking Lot – ATTACHMENT 1

A motion was made by Musta and supported by Bengelink to forward to the full board to approve moving forward with Option 2 for the repair of the Lake Street parking lot.

Comm. Bengelink cited that the whole lot at Lake Street needs to be fixed and not patched.

Ms. Koch remarked about the updated document that Prein & Newhoff sent. She stated that Option 2 will replace the parking lot. Also, if any contamination is detected additional funding will be needed to cover that cost.

A vote was called. All in favor.

G.4. Cadillac Janitorial Agreement – ATTACHMENT 2

A motion was made by Bengelink and supported by Musta to forward to the full board for approval the Memorandum of Understanding with Cadillac Janitorial.

No discussion took place.

A vote was called. All in favor.

G.5. MI Works Lease Agreement

A motion was made by Hurlburt and supported by Musta to forward to the full board for approval the 2-year Networks Northwest, MI Works Lease Agreement.

No discussion took place.

A vote was called. All in favor.

G.6. American Rescue Plan Act, ARPA

Ms. Koch stated that there are still a lot of unanswered questions. She expects additional information in the upcoming months. In the MAC newsletter, they are working with the State on some projects and might equal the funding.

Ms. Koch stated that a list of requests has been started. She will add information as it comes in. Once the state issues the guidelines for the funding the list will be reevaluated.

G.7. Old Jail Property Contingency Offer – ATTACHMENT 3

A motion was made by Bengelink and supported by Musta to forward to the full board for approval the Contingent Option to Purchase the old jail, pending review by legal counsel.

Ms. Koch reported that the US Federal Properties Co., inquired about the demolition of the building and if the community would voice their disapproval. The Committee agreed that the community would not be opposed to the demolition. She stated the company is out of Missouri and is considering four different locations. The company will submit a proposal to the VA by July 1 on which property is selected. The VA would like to award the contract by September 30.

A vote was called. All in favor.

CORRESPONDENCE

None.

ADMINISTRATOR'S COMMENTS

Ms. Koch informed the committee of the following:

- Regarding the new jail, legal counsel has already begun moving forward knowing that time is crucial. A virtual meeting was held yesterday with legal counsel, the architect and project manager. The Sheriff's Office Manager, Julie Henry, has already uploaded numerous files. Also a project engineer is already on site. They are moving very quickly.

PUBLIC COMMENTS

None.

COMMITTEE COMMENTS

None.

CHAIR COMMENTS

None.

ADJOURN

A motion was made by Bengelink and supported by Musta to adjourn at 4:13 p.m. A vote was called. All in favor.

Gary Taylor, Chair

Norma Schmidt, Recording Secretary

June 8, 2021

Janet Koch, Administrator
Wexford County
437 E. Division Street
Cadillac, MI 49601

JKoch@wexfordcounty.org

RE: 401 N. Lake Street Parking Lot Improvements

Dear Ms. Koch:

Prein&Newhof (P&N) is pleased to present this proposal for design of improvements for the Parking Lot located at 401 North Lake Street in Cadillac. We look forward to working with you on this project.

The existing parking lot is in very poor condition. There is a large hole in the west side of the lot, multiple potholes, and evidence of heaving pavement throughout the lot. We understand that you would like to make the parking lot to be made smoother and safer for pedestrian use.

PREVIOUS WORK DONE BY P&N

Conceptual design work was previously performed on this property in 2015. We plan to use this concept as a basis of design for our current project.

A geotechnical investigation in 2015 of this site was performed by Prein&Newhof in 2015 and revealed very poor subsurface conditions and pockets of potentially contaminated soils. We plan to use the recommendations in that report for our proposed design. *No additional geotechnical investigation is proposed.*

A topographic survey of the site was performed in 2015. We propose to collect supplemental survey data to determine changes to the site due to additional settlement. We plan to use existing horizontal and vertical control if it is found intact.

Using the 2015 geotechnical investigation and topographic survey, two options have been developed for repair. These two options will be used for the design phase of our proposed work for this project.

OPTION 1 – CRUSH AND SHAPE EXISTING PARKING LOT

The first option for repair of your parking lot is to pulverize the existing asphalt surface, fill large holes in the surface with suitable material, and place new asphalt surfacing on the lot. This option will not remove poor soils found in the geotechnical report and should only be considered if the topographic survey performed reveals that the parking lot has stabilized is stable. The preliminary estimated construction cost for this option is **\$76,000**. A preliminary scoping estimate for this option is attached.

Design work for this option will include comparing 2021 topographic data to 2015 data to determine soil movement, a basic grading plan (of low areas only), drainage structure modification, layout of parking spaces, and development of a detailed engineer's estimate for construction.

OPTION 2 – EXCAVATE POOR SOILS AND REGRADE LOT

The second option for repair of your parking lot is to remove the existing asphalt, determine areas of poor soils, excavate unsuitable material and replace with lightweight fill, place new aggregate base, and place new asphalt surfacing. This option will be more expensive but will make the lot more stable. The preliminary estimated construction cost for this option is **\$155,000**. A preliminary scoping estimate for this option is attached. *We assume that contaminated soils can remain somewhere on site. Costs will be higher if the contaminated soils will have to be removed from site and will be determined at that time.*

Design work for this option will include developing a grading plan for the lot, determination of excavation limits, replacement of drainage structures in areas of excavation, design of a lightweight fill cross section, layout of parking spaces, and development of a detailed engineer's estimate for construction.

BID DOCUMENTS

After design and plan development is complete, bid documents will be developed. These documents will consist of plans and specifications for construction of the proposed repair. These documents can be shared with contractors to receive bids for this project.

PROFESSIONAL FEES AND SERVICE AGREEMENT

We propose to perform the professional services described for this project for following fees:

A. Topographic Survey (Needed for Either Option)	\$1,200
B. Design of Option 1	\$3,900
C. Design of Option 2	\$7,900
D. Bid Documents (Needed for Either Option).....	\$2,000

Total Design Cost for Option 1 (A+B+D) \$7,100
Total Design Cost for Option 2 (A+C+D) \$11,100

Please let us know which design option you would like to pursue, and we will develop a Professional Services Agreement for your chosen option. We look forward to working with you on this project.

Sincerely,

Prein&Newhof



Connie S. Houk, P.E.

CSH/es

Encl: Scoping Estimates with 2021 pricing, 2015 Geotechnical Report

PARKING LOT**\$ 75,764.00****Option 1 - Crush/Shape Existing HMA Surface**

Curb and Gutter, Rem	279 Ft	\$ 8.00	\$ 2,232.00
Sidewalk, Rem	46 Syd	\$ 12.00	\$ 552.00
HMA Base Crushing and Shaping	2160 Syd	\$ 3.00	\$ 6,480.00
Curb and Gutter, Conc, Det F4	279 Ft	\$ 20.00	\$ 5,580.00
HMA, LVSP - (3 inches)	360 Ton	\$ 110.00	\$ 39,600.00
Hand Patching	25 Ton	\$ 150.00	\$ 3,750.00
Material, Surplus and Unsuitable, Rem, LM	70 Cyd	\$ 6.00	\$ 420.00
Dr Structure, Rem	3 Ea	\$ 350.00	\$ 1,050.00
Sewer, Rem, Less than 24 inch	160 Ft	\$ 10.00	\$ 1,600.00
Dr Structure, 48 inch dia	3 Ea	\$ 2,300.00	\$ 6,900.00
Sewer, Cl E, 12 inch, Tr Det B	160 Ft	\$ 30.00	\$ 4,800.00
Dr Structure Cover, Type D	2 Ea	\$ 800.00	\$ 1,600.00
Dr Structure Cover, Type K	1 Ea	\$ 800.00	\$ 800.00
Slope Restoration	100 Syd	\$ 4.00	\$ 400.00

PARKING LOT**\$ 154,594.00****Option 2 - Remove Peat & Lightweight Fill in Area around Catchbasin**

Curb and Gutter, Rem	279 Ft	\$ 8.00	\$ 2,232.00
Sidewalk, Rem	46 Syd	\$ 12.00	\$ 552.00
HMA Base Crushing and Shaping	2160 Syd	\$ 3.00	\$ 6,480.00
Excavation, Earth	250 Cyd	\$ 8.00	\$ 2,000.00
Excavation, Peat	250 Cyd	\$ 14.00	\$ 3,500.00
Non Haz Contaminated Material Handling and Disposal, LM*	250 Cyd	\$ 35.00	\$ 8,750.00
Aggregate Base	Ton	\$ 30.00	\$ -
Curb and Gutter, Conc, Det F4	279 Ft	\$ 20.00	\$ 5,580.00
HMA, LVSP - (3 inches)	360 Ton	\$ 110.00	\$ 39,600.00
Hand Patching	25 Ton	\$ 150.00	\$ 3,750.00
Lightweight Flowable Fill	480 Cyd	\$ 125.00	\$ 60,000.00
Material, Surplus and Unsuitable, Rem, LM	100 Cyd	\$ 6.00	\$ 600.00
Dr Structure, Rem	3 Ea	\$ 350.00	\$ 1,050.00
Sewer, Rem, Less than 24 inch	160 Ft	\$ 10.00	\$ 1,600.00
Dr Structure, 48 inch dia	1 Ea	\$ 2,300.00	\$ 2,300.00
Dr Structure, HDPE, 48 inch dia	2 Ea	\$ 2,000.00	\$ 4,000.00
Sewer, Cl E, 12 inch, Tr Det B	160 Ft	\$ 30.00	\$ 4,800.00
Dr Structure Cover, Type D	2 Ea	\$ 800.00	\$ 1,600.00
Dr Structure Cover, Type K	1 Ea	\$ 800.00	\$ 800.00
Dewatering**	1 LS	\$ 5,000.00	\$ 5,000.00
Slope Restoration	100 Syd	\$ 4.00	\$ 400.00

Hazardous material disposal may replace this pay item at an increased cost***If contaminated water is encountered proper disposal is required.****Disposal of material is approximately \$30/Ton at landfill****Contractor will be responsible for taking care of manifestation.**

July 31, 2015
Project No. 2140552

Mr. Adam Kerr
County of Wexford
437 E. Division Street
Cadillac, MI 49601

**Re: Soil Investigation Summary Report
401 N. Lake Street Parking Lot
Cadillac, Michigan**

Dear Mr. Kerr:

This letter presents a summary of the results of a soil investigation performed at the Michigan Works Service Center parking lot at 401 N. Lake Street, Cadillac, Michigan. It is understood that the parking lot has experienced settlement and heave of the pavement surface in several areas, along with general surface distortions throughout most of the lot. Present plans call for parking lot repairs that may include repair and/or replacement of two sunken catch basins located on the west side of the site and repair of a heaved area in the northeast portion of the lot. The catch basin repairs are expected to require raising the elevation of the parking lot subgrade by up to about 1.5 feet in the areas around the catch basins in the northwestern part of the site that have experienced settlement.

Soil Investigation

Four soil borings were drilled by Pearson Drilling Co. under the observation of Prein&Newhof on July 10, 2015. As-drilled locations of the borings are shown on the attached Soil Boring Location sketch. In addition, laboratory moisture content tests were performed on selected samples to assess the compressibility potential of organic soils encountered below the pavement.

Subsurface Conditions

The following conditions were observed at the boring locations:

Boring	Depth (ft)	Soil Description	Comments
SB-1	0-0.7 0.7-4.0 4.0-15.0 15.0-16.5	Pavement: 3.5" HMA over 4.5" Aggregate Base Fill: loose to very loose Sand and Gravel Very soft Peat (strong petroleum odor) Very loose Sand	Boring drilled in settled area around existing CB Groundwater at 2.0 ft
SB-2	0-0.6 0.6-2.0 2.0-3.0 3.0-6.2	Pavement: 3" HMA over 4" Aggregate Base Fill: loose gravelly Sand Organic Sand Very soft Peat [firm bottom at 6.2 ft]	Boring drilled in south drive lane Groundwater at 6.0 ft
SB-3	0-0.7 0.7-4.0 4.0-4.8 4.8-6.5	Pavement: 3" HMA over 5" Aggregate Base Fill: very loose Sand with gravel Lightweight Fill: Wood chips (9") Very soft Peat [firm bottom at 6.5 ft]	Boring drilled in north drive lane Groundwater at 6.0 ft

SB-4	0-0.9 0.9-2.0 2.0-6.0	Pavement: 3" HMA over 8.5" Aggregate Base Fill: very loose Sand with gravel Very soft Peat [firm bottom at 6.0 ft]	Boring drilled at north end of west drive lane Groundwater at 5.2 ft
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Evaluation and Recommendations

The conditions found in the soil borings indicate that the parking lot is constructed over compressible, low strength organic soils ranging from peat to organic sand. These organic have exceptionally high moisture contents ranging up to 456 percent which indicates that they are highly susceptible to significant settlement when subjected to loads imposed by fill, pavement, traffic and cyclic fluctuations of the water table. SB-1 encountered a significantly greater thickness of organic soil than the other borings (11 ft in SB-1 compared to 1.5 to 4.2 ft in the other borings), which accounts for the much greater settlement that appears to have occurred in that area, as well as the apparent settlement of the catch basin itself. The catch basin near SB-4 does not show signs of settlement; however, the pavement in this area appears to have settled relative to the catch basin structure and the pavement surface is currently well below the catch basin rim.

The presence of wood chips in SB-3 suggests that settlement has been a problem at this site for a long time. Prior to the development of lightweight synthetic fill material, wood chips were typically used as the material of choice for lightweight fill applications.

The conditions encountered in SB-3 do not reveal any readily obvious cause(s) for the localized heave that has occurred in this area.

Parking lot repairs and repair/reconstruction of the settled catch basin near SB-1 will be a challenging operation, particularly since raising the finished grades in the area using conventional fill material will result in considerable additional settlement. Since the peat in this area extends to about 15 ft below the surface and about 13 ft below the water table, complete removal of the peat does not appear practical. We recommend that consideration be given to removing the upper layer of sand and gravel fill and possibly some peat down to at least 18 inches below the proposed bottom of catch basin elevation. The excavation should then be backfilled in layers using lightweight flowable fill to form a stable platform for placing a new lightweight HDPE catch basin. The rest of the excavation should then be backfilled with lightweight flowable fill up to the proposed subgrade elevation. Proper selection of the flowable fill mixture should permit the parking lot grade to be raised as needed while keeping the net weight of the fill at or below the existing value, thereby reducing the potential for future settlement. (Normally, lightweight flowable fill mixtures can achieve unit weights as low as 50 to 80 pounds per cubic foot. However, special mixtures can be designed with unit weights as low as 20-30 pounds per cubic foot).

Other lightweight fill materials such as expanded polystyrene geofoam may be considered. However, given the high water table at this site, these materials may be subject to buoyancy problems.

Mr. Adam Kerr
County of Wexford
July 31, 2015

Limitations

The evaluation and recommendations presented above are considered to be preliminary and are intended to form the basis for further discussion to determine the actual scope of pavement and catch basin repairs.

It should also be noted that the scope of this investigation was limited to evaluation of geotechnical considerations relative to pavement and catch basin repairs. The scope of the project did not include the assessment of possible contamination by chemical or other hazardous materials. Accordingly, the presence or absence of such material or contamination is not implied, inferred or suggested by this report or the results of this study. Nevertheless, it should be noted that a **strong petroleum odor was observed in SB-1**. Consideration should be given to testing the affected samples to determine if these materials require **special handling during construction**.

We look forward to discussing the results of this investigation as the design of this repair project progresses.

Sincerely,

Prein&Newhof



Fernando Souto, P.E.

FS/vav

MEMORANDUM OF UNDERSTANDING

This Memorandum is made and entered into on the date set forth below, by and between the County of Wexford (County) and Cadillac Janitorial, Inc. (Contractor).

- 1) The County and the Contractor are parties to a Janitorial, Snow removal, Groundskeeping and Limited Maintenance Services Agreement dated March 18, 2015, which has had several extensions, the last of which will expire June 30, 2021.
- 2) The County and the Contractor have mutually agreed to a limited reduction in daily/weekly janitorial services at two locations; the Courthouse/Annex at 437 E. Division and the Lake Street Building at 401 N. Lake Street.
- 3) The following are attached and considered a part of this memorandum:
 - a. Attachment A: list of the reductions in services, the one addition, the services that will not change, and notes of clarification
 - b. Attachment B: sketches of the Courthouse/Annex and 401 N. Lake Street with color coding that illustrates current daily/weekly janitorial duties.
 - c. Attachment C: sketches of the Courthouse/Annex and 401 N. Lake Street with color coding that illustrates the amended daily/weekly janitorial duties.
- 4) The Contractor's compensation for janitorial services starting July 1, 2021 will be:
 - a. Courthouse and Annex..... \$53,622.72 per year
 - b. Lake Street Building..... \$33,802.08 per year
- 5) The County shall pay to the Contractor the prorated monthly compensation stated above on or about the first day of each month, by the same method that the previous compensation was paid.
- 6) The Contractor's compensation for snowplowing and groundskeeping for the Public Defender's Office at 419 N. Lake Street shall be identical to the snowplowing and groundskeeping compensation for the other County facilities.
- 7) The terms of this Memorandum will expire May 31, 2022.

COUNTY OF WEXFORD
BOARD OF COMMISSIONERS

Dated: _____

Gary Taylor, Chair

Dated: _____

Alaina M. Nyman, County Clerk

CADILLAC JANITORIAL, INC.

Dated: _____

Carl Ouwinga, President

Contingent Option to Purchase

The undersigned hereby grants to US Federal Properties Co., LLC, a Missouri Limited Liability Company (the "Optionee") this Contingent Option to Purchase approximately 4.25 acres of land at 429 Cobb Street (address) in Cadillac (City), Michigan (State) (the "Property") with any required subdivision being mutually agreeable to the parties of this Contingent Option to Purchase. Refer to Exhibit A for property location. The property shall be optioned at a price of \$275,000.00. It is understood and agreed that this Option Agreement is Contingent upon the Veterans Administration awarding the development of the new Veterans Administration Outpatient Clinic ("16,000 usable square feet") ("the VA Project") to the undersigned Optionee.

In consideration of the grant of this Option to Purchase, Optionee has paid herewith a refundable Option Fee of Ten Thousand Dollars (\$10,000.00). The Option Fee shall be credited toward the purchase price in the event the Option to Purchase is exercised or returned to Optionee if the option is not exercised by Optionee.

The Option shall be exercised by the Optionee by delivering written notice to the undersigned by personal delivery or by depositing in mail directed to the undersigned's address below upon receipt of the Veterans Administration award on or before December 31, 2021. Option must be exercised within 10 days following receipt of the award or before December 31, 2021. If the Option is not exercised by December 31, 2021, or otherwise extended, this agreement shall be considered terminated.

If this Option is exercised the Parties shall enter into an Agreement for the Purchase and Sale of Real Estate (the "PSA") with standard commercial terms and the closing shall take place within ninety (90) days of the date of the fully executed PSA. At closing, the undersigned shall deliver a limited warranty deed containing a transferable legal description conveying the real estate free and clear of all encumbrances excepting and subject to all legal highways, applicable zoning ordinances, and easements of record, standard exceptions, and any acts or omissions of Optionee, and real estate taxes and assessments prorated in accordance with local custom. If the Project is awarded to another party other than Optionee, then the Option to Purchase granted by this Option shall automatically and immediately terminate without notice and upon written request, Optionor shall return all Option fees held to Optionee. This Option is not assignable by the Optionee except that the Optionee may assign its rights under this Option to Purchase to a corporation, limited liability company, or other entity as long as a majority of the voting interests are owned by the Optionee or if Optionee is its Manager.

The parties acknowledge that the Fair Housing Act prohibits discrimination in housing because of race, color, national origin, religion, sex, familial status and handicap.

IN WITNESS WHEREOF, Optionor and Optionee have executed this Option to Purchase on the _____ day of _____, 20__.

OPTIONOR:

Wexford County Commissioners

Address: _____

By: _____

Name: _____

Date: _____

Certificate of Acknowledgement

State of _____

County of _____

On _____, before me, _____ (notary), personally appeared _____, whose name is subscribed to the within instrument and acknowledged to me that he/she executed the same in his/her authorized capacity, and that by his/her signature on the instrument the person or the entity upon behalf of which the person acted, executed the instrument.

WITNESS my hand and official seal

My Commission Expires: _____

(seal)

SIGNATURES CONTINUE ON NEXT PAGE

OPTIONEE:

US Federal Properties Co., LLC
4706 Broadway, Suite 240
Kansas City MO 64112

By:_____

Name:_____

Date:_____

Certificate of Acknowledgement

State of _____

County of _____

On _____, before me, _____ (notary),
personally appeared _____, whose name is subscribed to the
within instrument and acknowledged to me that he/she executed the same in his/her
authorized capacity, and that by his/her signature on the instrument the person or the
entity upon behalf of which the person acted, executed the instrument.

WITNESS my hand and official seal

My Commission Expires:_____

(seal)

EXHIBIT A
PROPERTY LOCATION

Address: 429 Cobb Street, Cadillac, MI 49601

Parcel Description: Parcel No. 10-082-00-444-00, as identified on the map below:





G.2.a.

Monthly Operations & Maintenance Report

July 13, 2021

Report for Month: June, 2021
Location: Wexford County
Facilities: Cedar Creek Water Plant & Distribution System
Operator in Charge: Bob Polanic, Area Manager

Emergency Call-outs/Customer Complaints

- ❑ N/A

Significant Events:

- ❑ 6-9-21 – Generator fault @ Wellhouse, reset – OK.
- ❑ 6-30-21 – Turned water on @ 9230 E 22 Rd.

Preventive Maintenance:

- ❑ IAI staff continues to regularly check chlorine residuals throughout the water system.

Facilities Data for the Month

Production at Well House	363,900 gallons
Metered Usage (Includes Flushing Hydrants)	331,291 gallons
Metered Reversal Flow at Well House	30,000 gallons
Metered Flushing	0 gallons
Difference (% Loss)	2,609 gallons (0.72%)



BOARD OF COMMISSIONERS COMMITTEE AGENDA ITEM

TO: Executive Committee
FROM: Janet Koch, Administrator
FOR MEETING DATE: July 13, 2021
SUBJECT: ARPA Funds

SUMMARY OF ITEM TO BE PRESENTED:

Following is Appendix 1 from the US Treasury's *Compliance and Reporting Guidance* for the State and Local Fiscal Recovery Funds that have been made available through the federal American Rescue Plan Act.

Appendix 1 lists the expenditure categories under which each project is required to be categorized.

A list of proposed projects is being added to on a regular basis. The current list will be brought to the meeting for the committee's review and discussion.

Another reference that is helpful regarding the determination of eligible expenses is the US Treasury's FAQ, most currently released at the end of June. A link is provided here: <https://home.treasury.gov/system/files/136/SLFRPFAQ.pdf>



Appendix 1: Expenditure Categories

The Expenditure Categories (EC) listed below must be used to categorize each project as noted in Part 2 above. The term “Expenditure Category” refers to the detailed level (e.g., 1.1 COVID-10 Vaccination). When referred to at the summary level (e.g., EC 1) it includes all Expenditure Categories within that summary level.

1: Public Health	
1.1	COVID-19 Vaccination ^
1.2	COVID-19 Testing ^
1.3	COVID-19 Contact Tracing
1.4	Prevention in Congregate Settings (Nursing Homes, Prisons/Jails, Dense Work Sites, Schools, etc.)*
1.5	Personal Protective Equipment
1.6	Medical Expenses (including Alternative Care Facilities)
1.7	Capital Investments or Physical Plant Changes to Public Facilities that respond to the COVID-19 public health emergency
1.8	Other COVID-19 Public Health Expenses (including Communications, Enforcement, Isolation/Quarantine)
1.9	Payroll Costs for Public Health, Safety, and Other Public Sector Staff Responding to COVID-19
1.10	Mental Health Services*
1.11	Substance Use Services*
1.12	Other Public Health Services
2: Negative Economic Impacts	
2.1	Household Assistance: Food Programs* ^
2.2	Household Assistance: Rent, Mortgage, and Utility Aid* ^
2.3	Household Assistance: Cash Transfers* ^
2.4	Household Assistance: Internet Access Programs* ^
2.5	Household Assistance: Eviction Prevention* ^
2.6	Unemployment Benefits or Cash Assistance to Unemployed Workers*
2.7	Job Training Assistance (e.g., Sectoral job-training, Subsidized Employment, Employment Supports or Incentives)* ^
2.8	Contributions to UI Trust Funds
2.9	Small Business Economic Assistance (General)* ^
2.10	Aid to Nonprofit Organizations*
2.11	Aid to Tourism, Travel, or Hospitality
2.12	Aid to Other Impacted Industries
2.13	Other Economic Support* ^
2.14	Rehiring Public Sector Staff
3: Services to Disproportionately Impacted Communities	
3.1	Education Assistance: Early Learning* ^
3.2	Education Assistance: Aid to High-Poverty Districts ^
3.3	Education Assistance: Academic Services* ^
3.4	Education Assistance: Social, Emotional, and Mental Health Services* ^
3.5	Education Assistance: Other* ^
3.6	Healthy Childhood Environments: Child Care* ^
3.7	Healthy Childhood Environments: Home Visiting* ^
3.8	Healthy Childhood Environments: Services to Foster Youth or Families Involved in Child Welfare System* ^



3.9	Healthy Childhood Environments: Other* ^
3.10	Housing Support: Affordable Housing* ^
3.11	Housing Support: Services for Unhoused Persons* ^
3.12	Housing Support: Other Housing Assistance* ^
3.13	Social Determinants of Health: Other* ^
3.14	Social Determinants of Health: Community Health Workers or Benefits Navigators* ^
3.15	Social Determinants of Health: Lead Remediation ^
3.16	Social Determinants of Health: Community Violence Interventions* ^
4: Premium Pay	
4.1	Public Sector Employees
4.2	Private Sector: Grants to Other Employers
5: Infrastructure²⁷	
5.1	Clean Water: Centralized Wastewater Treatment
5.2	Clean Water: Centralized Wastewater Collection and Conveyance
5.3	Clean Water: Decentralized Wastewater
5.4	Clean Water: Combined Sewer Overflows
5.5	Clean Water: Other Sewer Infrastructure
5.6	Clean Water: Stormwater
5.7	Clean Water: Energy Conservation
5.8	Clean Water: Water Conservation
5.9	Clean Water: Nonpoint Source
5.10	Drinking water: Treatment
5.11	Drinking water: Transmission & Distribution
5.12	Drinking water: Transmission & Distribution: Lead Remediation
5.13	Drinking water: Source
5.14	Drinking water: Storage
5.15	Drinking water: Other water infrastructure
5.16	Broadband: “Last Mile” projects
5.17	Broadband: Other projects
6: Revenue Replacement	
6.1	Provision of Government Services
7: Administrative	
7.1	Administrative Expenses
7.2	Evaluation and Data Analysis
7.3	Transfers to Other Units of Government
7.4	Transfers to Non-entitlement Units (States and territories only)

*Denotes areas where recipients must identify the amount of the total funds that are allocated to evidence-based interventions (see Use of Evidence section above for details)

^Denotes areas where recipients must report on whether projects are primarily serving disadvantaged communities (see Project Demographic Distribution section above for details)

²⁷ Definitions for water and sewer Expenditure Categories can be found in the EPA’s handbooks. For “clean water” expenditure category definitions, please see: <https://www.epa.gov/sites/production/files/2018-03/documents/cwdefinitions.pdf>. For “drinking water” expenditure category definitions, please see: <https://www.epa.gov/dwsrf/drinking-water-state-revolving-fund-national-information-management-system-reports>.



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
LANSING

H.1.



LIESL EICHLER CLARK
DIRECTOR

June 15, 2021

Mr. Steve Kniss
Wexford County Landfill, LLC
P.O. Box 1030
Kalkaska, Michigan 49646

Dear Mr. Ascione:

SUBJECT: Perpetual Care Fund (PCF); Solid Waste Surcharge; and Annual Solid Waste Receipt Report (Annual Report); Wexford County Landfill, LLC (Wexford); Waste Data System Number 470336; Fiscal Year (FY) 2020

The Department of Environment, Great Lakes and Energy (EGLE), Materials Management Division (MMD), has evaluated the following information for the above-subject facility:

1. The PCF account balance at the close of FY 2020, as required by Section 11525 of Part 115, Solid Waste Management, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (Part 115). The PCF account balance should be reflective of the amount of solid waste disposed of in the landfill after June 17, 1990.
2. Solid waste surcharge payments for FY 2020, as required by Section 11525a of Part 115. The solid waste surcharge payment is related to the amount of solid waste disposed of in the landfill and the first payments into the solid waste surcharge program began in January 2004.
3. The Annual Report information for FY 2020. The Annual Report, which is required under Section 11507a of Part 115, documents the amounts, types, and origins of solid waste disposed during the reported fiscal year, and is reviewed by the MMD to ensure that the landfill owner/operator is complying with applicable county solid waste management plans (County Plans). Also, note that throughout the remainder of this letter the Annual Report is now part of and referred to as the Combined Solid Waste Landfill Waste Receipt Report (Combined Report).

4. Disposal capacity comparison reported in the Combined Report for FY 2020, as required under Section 11507a of Part 115, in relation to the permitted capacity at the landfill.

The purpose of this evaluation is to ensure that all the above information, as supplied by the landfill in the Combined Report is consistent and that the respective statutory requirements are being met.

The results of this evaluation are described further in this letter. Please respond in writing to this evaluation by July 15, 2021, indicating Wexford's agreement or reasons for disagreement with the evaluation results, and, where there is agreement on identified problem areas, explain what Wexford will do to address them.

Wexford may submit documentation in support of its position regarding the evaluation. All available information will be used by EGLE to reevaluate the compliance status of Wexford with the requirements addressed in this letter.

PCF Account Balance

Due to a change in Section 11525 of Part 115, facilities are now required to increase the amount of the PCF based on solid waste disposed at the landfill as of the end of the state fiscal year and make that deposit within 30 days after the end of each state fiscal year. This audit letter is for the period from October 1, 2019, through September 30, 2020, and those payments were due by October 30, 2020. Thus, all PCF reviews were previously completed in November of the year they were due and any facility that had a PCF shortage was notified at that time. Therefore, at this time, your PCF should be fully funded. Please see enclosed PCF Balance Worksheet.

As a reminder, you will need to continue to make the full deposit into the PCF that is required, by October 30, 2021, for waste received from October 1, 2020, through September 30, 2021.

Solid Waste Surcharge Payments

Wexford is required to make quarterly solid waste surcharge payments of \$0.12 per cubic yard of solid waste disposed for the period. An evaluation of the Combined Reports shows that Wexford has made appropriate solid waste surcharge payments during FY 2020.

County Plans

Sections 11513 and 11538(6) of Part 115 prohibit a disposal area in Michigan from accepting solid waste generated in a Michigan county other than the county where the disposal area is located, unless acceptance of that waste is explicitly authorized in the approved county plan of both the county where the waste is generated and the county

where the disposal occurs. In addition, many County Plans impose additional conditions or limitations on the acceptance of solid waste from other Michigan counties.

The Combined Reports for the reporting period of October 1, 2019, through September 30, 2020, indicates that Wexford may have accepted solid waste that may not have been authorized for disposal at the landfill by applicable county plans. Specifically, Wexford, which is located in Wexford County, accepted 5,826 cubic yards of waste from Clare County. The Wexford County Plan authorizes waste imports from Clare County, the Clare County Plan does not authorize exports to Wexford County.

Capacity

Section 11507a of Part 115 requires each landfill to provide the amount of remaining disposal capacity at the landfill. Remaining disposal capacity is calculated as the permitted capacity less waste in place for any area that has been constructed and is not yet closed plus the permitted capacity for each area that has a permit for construction under Part 115 but has not yet been constructed. A review of the permitted capacity at the landfill provided matches EGLE records and no further action is required.

We appreciate your efforts to provide consistent information and to meet the requirements evaluated herein. Should you have any questions regarding the PCF, Combined Report, or Solid Waste Surcharge please contact Ms. Katriena Guilmette, Solid Waste Section (SWS), MMD, at 517-388-0293 or guilmette@michigan.gov; if you have any questions regarding the County Plan information, please contact Ms. Carlie Money, Sustainable Materials Management Unit, SWS, MMD, at 517-897-4805 or moneyc@michigan.gov; or if you have any questions regarding the Capacity information, please contact Ms. Margie Ring, SWS, MMD, at 517-290-6125 or ringm@michigan.gov; or you may contact them at EGLE, P.O. Box 30241, Lansing, Michigan 48909-7741.

Sincerely,



Rhonda S. Oyer, Manager
Solid Waste Section
Materials Management Division
517-897-1395

Enclosure

cc: Ms. Janet Koch, Wexford County
Mr. Phil Roycraft, EGLE-Cadillac
Ms. Katriena Guilmette/PCF File, EGLE
Ms. Margie Ring, EGLE
Ms. Carlie Money/Facility File, EGLE

PCF Balance Worksheet

Wexford County Landfill, LLC
470336

Fiscal Year	Waste Volume, cubic yards	Calculated Maximum Payment (cubic yards x \$0.25)*	Calculated Maximum Balance**	Statutory Maximum Balance @ June of Fiscal Year	Actual Balance @ End of Fiscal Year	Underfunded Amount***
1996	215,027.0	\$53,756.75		\$1,156,000		
1997	210,707.0	\$52,676.75		\$1,189,524		
1998	217,934.0	\$54,483.50		\$1,222,830	\$519,803.00	
1999	240,207.0	\$60,051.75	\$579,854.75	\$1,239,950	\$608,475.00	-\$28,620.25
2000	279,911.0	\$69,977.75	\$678,452.75	\$1,291,000	\$701,171.00	-\$22,718.25
2001	294,814.0	\$73,703.50	\$774,874.50	\$1,308,000	\$810,899.00	-\$36,024.50
2002	294,032.0	\$73,508.00	\$884,407.00	\$1,325,000	\$899,651.00	-\$15,244.00
2003	303,112.0	\$75,778.00	\$975,429.00	\$1,380,650	\$992,726.00	-\$17,297.00
2004	284,429.0	\$71,107.25	\$1,063,833.25	\$1,409,000	\$1,075,003.00	-\$11,169.75
2005	308,015.0	\$77,003.75	\$1,152,006.75	\$1,566,000	\$1,157,927.00	-\$5,920.25
2006	236,702.0	\$59,175.50	\$1,217,102.50	\$1,639,000	\$1,317,722.00	-\$100,619.50
2007	215,766.0	\$53,941.50	\$1,371,663.50	\$1,700,000	\$1,440,482.00	-\$68,818.50
2008	182,022.0	\$45,505.50	\$1,485,987.50	\$1,789,000	\$1,555,956.63	-\$69,969.13
2009	125,803.0	\$31,450.75	\$1,587,407.38	\$1,805,000	\$1,600,768.01	-\$13,360.63
2010	125,256.0	\$31,314.00	\$1,632,082.01	\$1,878,500	\$1,628,780.00	\$3,302.01
2011	143,679.0	\$35,919.75	\$1,664,699.75	\$1,962,000	\$1,672,655.71	-\$7,955.96
2012	485,335.0	\$121,333.75	\$1,793,989.46	\$2,045,000	\$1,786,733.00	\$7,256.46
2013	538,710.0	\$134,677.50	\$1,921,410.50	\$2,078,000	\$1,914,736.12	\$6,674.38
2014	594,424.0	\$148,606.00	\$2,063,342.12	\$2,106,000	\$2,076,663.00	-\$13,320.88
2015	674,513.0	\$168,628.25	\$2,245,291.25	\$2,118,000	\$2,252,158.52	-\$134,158.52
2016	629,914.4	\$157,478.60	\$2,409,637.12	\$2,112,000	\$2,253,669.67	-\$141,669.67
2017	662,495.9	\$165,623.98	\$2,419,293.65	\$2,173,000	\$2,265,202.81	-\$92,202.81
2018	669,525.8	\$167,381.45	\$2,432,584.26	\$2,257,000	\$2,295,752.42	-\$38,752.42
2019	705,354.3	\$176,338.58	\$2,472,091.00	\$2,351,000	\$2,346,528.35	\$4,471.65
2020	794,444.8	\$198,611.20	\$2,545,139.55	\$2,351,000	\$2,373,741.76	-\$22,741.76

* Before consideration of the statutory maximum required balance.

** Before consideration of the statutory maximum required balance. The first amount in this column is calculated by adding the Calculated Maximum Payment to the Actual Balance @ End of Fiscal Year for the previous fiscal year. Subsequent amounts are calculated by adding the Calculated Maximum Payment to the Calculated Maximum Balance for the previous fiscal year.

*** Underfunded amount is the Calculated Maximum Balance minus the Actual Balance @ End of Fiscal Year, unless the Calculated Maximum Balance is greater than the Statutory Maximum Balance @ June of Fiscal Year, then the Underfunded Amount is the Statutory Maximum Balance @ June of Fiscal Year minus the Actual Balance @ End of Fiscal Year. This annual amount is a minimum underfunded amount, because it may not include interest and other earnings, which cannot be used to offset the statutory deposit obligations.

This worksheet is intended to evaluate perpetual care funds required under MCL 324.11525 using data submitted by the landfill and the financial institution for the perpetual care fund. While perpetual care fund requirements became effective in 1990, waste volume data was not required to be submitted until 1996. Therefore, calculations in the worksheet begin with the first available data on waste volumes, and may not reflect required payments and balances for prior periods.